



POLICE DEPARTMENT

October 3, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404008 (Incident Date: April 24, 2024) regarding Police Officer Kirolos Ishak, Tax No. 976720 (PODS Case No. C-035029)

Dear Mr. Darche:

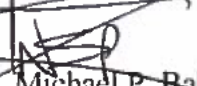
The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202404008, pertaining to Police Officer Kirolos Ishak. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

After reviewing the body-worn camera footage, and taking into account the totality of the circumstances, the Police Commissioner has determined that no disciplinary action should be imposed for the use of force allegations. Police Officer Ishak's actions constituted a reasonable use of force that was necessary to maintain control of the individual. Accordingly, Police Officer Ishak's use of force has been deemed proper and within Department guidelines.

The Police Commissioner agrees with the CCRB regarding the body-worn camera allegation; however, disagrees that Charges and Specifications are the appropriate form of discipline. Police Officer Ishak has been a member of the New York City Police Department for over two (2) years, has no formal disciplinary history, and no prior substantiated CCRB allegations.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action regarding the force allegations. However, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with formalized training with regard to the body-worn camera allegation.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

October 6, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202404008 (Incident Date: April 24, 2024) regarding Police Officer Kirolos Ishak, Tax No. 976720 (PODS Case No. C-035029)

Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated October 3, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer Kirolos Ishak, issue no discipline for the excessive force Specifications, and impose a Schedule “A” Command Discipline with a penalty of formalized training for the remaining body-worn camera violation. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter referred to as “the Department”), I am responding to Assistant Chief Baker’s notification.

Assistant Chief Baker’s letter states that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against Officer Ishak would be detrimental to the Department’s disciplinary process. Specifically, the letter concludes that Officer Ishak’s conduct fell within Department guidelines for the use of force.

The CCRB respectfully disagrees with your assessment. Body-worn camera footage from Police Officer Matthew Grant at time 1:42 shows Officer Ishak yanking the civilian’s arm with such force that Officer Grant reacted aloud by saying “Shak, Shak,” in an apparent effort to calm him. Then, at time 6:40, Officer Grant’s body-worn camera recorded Officer Ishak twisting the civilian’s arms as she complained of shoulder pain. Notably, the civilian remained rear-handcuffed throughout those interactions, which further underscores how Officer Ishak failed to utilize the de-escalation techniques mandated by NYPD Patrol Guide Procedure 221-02 and failed to treat the civilian with the compassion, courtesy, professionalism, and respect required of him under NYPD Patrol Guide Procedure 221-02. Indeed, Officer Ishak’s actions were alarming enough to prompt a bystander to file a complaint with the CCRB. For those reasons, the evidence supports that Officer Ishak’s use of force exceeded the reasonable force necessary to maintain control over the handcuffed civilian. Serving Charges and Specifications—a process that promotes accountability and transparency—is the appropriate response to Officer Ishak’s use of gratuitous force.

Based upon the foregoing, the CCRB respectfully requests that the Department serves Charges and Specifications upon Officer Ishak.

Respectfully submitted,

Andre D. Applewhite
Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 7, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404008 (Incident Date: April 24, 2024) regarding Police Officer Kirolos Ishak, Tax No. 976720 (PODS Case No. C-035029)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 6, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Kirolos Ishak, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Ishak for the reasons expressed in my October 3, 2025, letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with formalized training for the allegation regarding the body-worn camera, as well as no disciplinary action for the force allegations.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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